

25NNCV09324 25NNCV09324

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Case Number: 25NNCV09324 Hearing Date: September 11, 2026 Dept: D

TENTATIVE RULING

Calendar: 12

Date: September 11, 2026

Case No: 25NNCV09324 Trial Date: Not yet set

Case Name: Pena v. CREH Pasadena LLC, et al.

MOTION TO STRIKE

[CCP § 436]

Moving Party: Defendant, CREH Pasadena, LLC

Responding Party: Plaintiffs, Francia Pena, Paola Contento, and Mayra Pena

RELIEF REQUESTED:

Strike the references to and requests for punitive damages.

CAUSES OF ACTION: from Complaint

1) Breach of Implied Warranty of Habitability

2) Tortious Breach of Implied Warranty of Habitability

3) Negligence

4) Intentional Infliction of Emotional Distress [dismissed on May 7, 2026]

5) Private Nuisance

6) Violation of Business and Professions Code Section 17200 et seq.

7) Retaliation – Civil Code Section 1942.5

SUMMARY OF FACTS:

The Complaint alleges that from December 1, 2016 to June 21, 2025, Francia Pena, Paola Contento, and Mayra Pena (collectively, "Plaintiffs") were occupants and tenants of real property located at 3335 Trevan Rd, Pasadena, CA 91107 (hereinafter, "Subject Property") owned by CREH Pasadena, LLC ("Defendant"). Plaintiffs allege that throughout their tenancy they experienced widespread water leaks and chronic mold, roof leaks, defective plumbing, a defective water heater, defective electrical, rodent infestations, and various other physical defects. Plaintiffs allege that despite repeatedly informing Defendant of the aforementioned issues, Defendant failed to, and refused to, take any corrective actions. The Complaint alleges that on October 21, 2024, Defendant informed Plaintiffs that the lease would expire as of November 30, 2024, and Plaintiffs were to move out of the Subject Property. The City of Pasadena Code Enforcement subsequently inspected the Subject Property and cited Defendant with several code violations. As a result of the citations, Defendant relocated Plaintiffs to a hotel. Plaintiffs allege that they were told that the relocation would last four to five days and that they would receive \$74.00 per diem for food and incidental expenses per person. However, Defendants failed to timely complete the remediation work, causing Plaintiffs to remain in the hotel for nearly seven months. Plaintiffs further allege that Defendants never reimbursed Plaintiffs the \$74.00 per person per day.

ANALYSIS:

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (a) strike out any irrelevant, false, or improper matter inserted in any pleading; or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP, § 436, subds. (a), (b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

"In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (Civil Code, § 3294, subd. (a); *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) Claims for punitive damages are disfavored in California. (*Las Palmas Assocs. v. Las Palmas Center Assocs.* (1991) 235 Cal.App.3d 1220, 1258).

A motion to strike is properly granted when a complaint fails to allege facts to state a prima facie claim for punitive damages under the standards of the statute. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63.) Alleging an intentional tort alone is not enough to support a claim for punitive damages, nor are conclusory allegations that merely parrot the language of the statute. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166; *Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963.)

Defendant moves to strike the following portions of the Complaint:

- 1) Page 11, Second Cause of Action for Tortious Breach of Warranty of Habitability, Paragraph 46, lines 11– 18;
- 2) Page 12, Third Cause of Action for Negligence, Paragraph 53, lines 17– 24;
- 3) Page 14, 15, Fifth Cause of Action for Private Nuisance, Paragraph 66, lines 23– 28; 1 – 3;
- 4) Page 16, Seventh Cause of Action for Tortious Breach of Warranty of Habitability, Paragraph 139, lines 23-27;
- 5) Prayer, Page 18, number 4, line 2;
- 6) Prayer, Page 18, number 7, line 15; and
- 7) Prayer, Page 19, number 17, line 5.

Defendant argues that Plaintiffs' conclusory allegations are insufficient to support a claim for punitive damages. Defendant argues that Plaintiffs' habitability allegations amount merely to claims that Defendant failed to address the habitability issues quicker, while Plaintiffs' retaliation claims are based solely on the allegation that Defendant asked Plaintiffs to move out after the lease term ended. (Mot., p. 8:6-22.) Defendant argues that these allegations, even if true, do not amount to reckless, willful, oppressive, or malicious conduct so as to support an award of punitive damages. (Mot., pp. 8:23-9:8.)

In the opposition, Plaintiffs, quoting the standard from *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6, argue that the Complaint “describe[s] a knowing and deliberate state of mind from which a conscious disregard of [Plaintiffs'] rights might be inferred.” (Opp., p. 2:16-18.)

California courts repeatedly have recognized that punitive damages may be recovered in tort actions arising from habitability violations. Plaintiffs reference *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, in which the Court of Appeal found the trial court had abused its discretion in granting a motion for judgment on the pleadings with respect to a tenant's claim for punitive damages against her landlords. (Id., at 920.) There, the Court of Appeal stated that a plaintiff may recover exemplary damages “when the landlord's conduct justifies the award.” (Id. at 926.)

The tenant in *Stoiber* alleged numerous defective and dangerous conditions including, but not limited to, “leaking of sewage from the bathroom plumbing; defective and dangerous electrical wiring; structural weaknesses in the walls; deteriorated flooring; falling ceiling; leaking roof; dilapidated doors; broken windows; and other unsafe and dangerous conditions.” (*Stoiber*, supra, 101 Cal.App.3d at p. 912.) Also attached to the complaint in *Stoiber* was a copy of the health department's notice to the landlord to vacate and demolish the premises which listed the following violations, among others: “heavy cockroach infestation, broken interior walls, broken deteriorated flooring on front porch, falling ceiling, deteriorated, overfused electrical wiring, lack of proper plumbing connection to sewage system in bathroom, sewage under bathroom floor, leaking roof, broken windows, and fire hazard.” (Ibid.) The tenant in *Stoiber* alleged that “she had repeatedly notified both Irene Honeychuck and Ron Perkins (an employee of Frank P. Smith Realty and Management) of defective conditions, and that no effort was made to repair the defects.” (Id. at p. 913.) This presentation was sufficient to allege that the landlord had actual and constructive knowledge of the defective conditions and failed to correct them.

Here, the Complaint alleges that, beginning in 2018, Plaintiffs informed Defendant of mold inside the property, gopher infestations, a skunk living underneath the house, and electrical issues that caused appliances to fail, yet Defendant failed to address these conditions. (Compl., ¶¶ 11-12, 19-20.) Plaintiffs further allege that they informed Defendant that the freezer was not working, but Defendants refused to replace it, leaving Plaintiffs without a working freezer for over two years. Beginning in 2020, Plaintiffs allegedly notified Defendant of several water leaks through the roof. (Compl., ¶ 13.) In June 2021, a roofing company purportedly determined that the roof was beyond repair and needed to be replaced, but Defendants allegedly refused to replace it. (Compl., ¶ 14.) In March 2022, Plaintiffs assert that they again complained of roof leaks, yet

Defendants did not send a roofing company to inspect the roof until October 2024. (Compl., ¶ 18.) The Complaint alleges that Defendants still failed to repair the roof, and the leaks continued throughout Plaintiffs' tenancy. (Compl., ¶ 18.) Lastly, the Complaint alleges that, in November 2024, the City of Pasadena "inspected the Subject Property and cited Defendants with several code violations, including but not limited to water damage and mold." (Compl., ¶ 22.)

The Court finds that, if proven true, the foregoing allegations would be sufficient to support an award of punitive damages. The Complaint adequately alleges that the Defendant had actual knowledge of the defective conditions yet failed to take reasonable steps to correct them. These allegations are materially similar to those in *Stoiber*, in which the Court of Appeal found comparable allegations were sufficient to support a claim for punitive damages against a plaintiff's landlords.

Thus, the motion to strike is DENIED.

RULING:

Defendant CREH Pasadena, LLC's Motion to Strike is DENIED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.